

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUBC048449: JAMES A. CLARK, et al. vs NISSAN NORTH AMERICA, INC., A
DELAWARE CORPORATION**

09/28/2026 in Department 44

**Motion to Compel Production FURTHER RESPONSES TO PLAINTIFFS REQUESTS
FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR SANCTIONS**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiffs, James A. Clark and Ann Jones ("Plaintiffs") **UNOPPOSED** Motion to Compel Further Responses to Requests for Production of Documents, Set One ("Motion")

Tentative Ruling: Plaintiffs' unopposed Motion to Compel Defendant Nissan North America, Inc. ("Defendant") further responses to requests for production is GRANTED. Defendant shall serve further code compliant written responses, verifications to same, and the documents sought on or before October 29, 2026. Plaintiffs' unopposed request for sanction is also GRANTED in the amount of \$2,311.50 against Nissan and defense counsel, with the amount awarded to be payable to Plaintiffs' counsel on or before October 29, 2026.

Plaintiffs' counsel shall give notice.